

POLITY 40 — OFFICIAL LANGUAGE

Part XVII • 1963/1967 settlement • States • courts • minorities • access

Official language is a legal function; India has no constitutionally declared national language.

01

CENTRAL CONCEPT AND CLASSIFICATION

CLASSIFICATION MATRIX

- constitutional category
- legal source
- quasi consequence

ROOT QUESTION

How can India share governmental language without declaring a national language?

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↔-> UNION OFFICIAL: Art. 343 -> Hindi, Devanagari
↔-> STATE OFFICIAL: Art. 345 -> one or more languages / Hindi
↔-> COURT / LAW: Art. 348 + statutory routes
↔-> SCHEDULED: Eighth Schedule -> 22, limited constitutional links
↔-> EDUCATION: Arts. 29-30, 350A + policy
CONTROL
official != national | scheduled != official everywhere | policy != Constitution.

02

CHRONOLOGY AND CONSTITUTIONAL COMPROMISE

CHRONOLOGY SEQUENCE

- founding bargain

▼

- statutory settlement

IMMEDIATE REPLACEMENT ----> MUNSHI-AYYANGAR COMPROMISE, SEPTEMBER 1949

CONTINUITY / FEDERALISM -> |

v

1950 Constitution -> Hindi official + English transition + Parliament power

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1955 B.G. Kher Commission -> 1957 G.B. Pant parliamentary examination

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1963 Act -> 1965 transition/agitations -> 1967 amendment, effective 8 Jan 1968

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1976 Rules -> administrative communication architecture.

LIMIT

The compromise is historical description; the enacted text controls.

03

ARTICLE 343 CLAUSE MECHANISM

CLAUSE MECHANISM

- default and transition
- parliamentary continuation

343(1) CONSTITUTIONAL DEFAULT

Hindi language | Devanagari script | International form of Indian numerals

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v

343(2) FIFTEEN YEARS, 1950-1965

English continues; President could add Hindi and Devanagari numerals

|

v

343(3) PARLIAMENTARY POWER

law may provide for English and/or Devanagari numerals after the period

|

v

OLA 1963 SECTION 3

English continues in addition to Hindi; no automatic 1965 switch-off.

04

ARTICLE 344 CONSULTATIVE ARCHITECTURE

CONSULTATIVE HIERARCHY

- Commission recommendations
- parliamentary scrutiny and direction

PRESIDENT -> Commission at 5-year and 10-year

points

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↔-> progressive Hindi use

↔-> restrictions on English

↔-> Article 348 language

↔-> numerals / referred communication matters

|

v

CLAUSE (3) BALANCE

advancement + just claims of non-Hindi areas in public services

|

v

30-member Committee: 20 LS + 10 RS, elected PR-STV

|

v

report to President -> possible directions.

CONTRAST

Article 344 committee != OLA section 4 statutory committee.

05

SECTION 3 BILINGUAL SETTLEMENT

COMMUNICATION MATRIX

- external federal routes
- internal bilingual safeguards
- discontinuance lock

SECTION 3(1)

English may continue in addition to Hindi for Union purposes and Parliament

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↔-> Union <=> non-Hindi State; English shall be used

↔-> Hindi State -> non-Hindi State: Hindi + English translation
↔-> voluntary Hindi communication remains possible

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SECTION 3(2) internal translation until working knowledge

SECTION 3(3) specified documents in both Hindi and English

SECTION 3(4) efficiency + public interest + employee non-disadvantage

SECTION 3(5) all relevant States + each House -> specified discontinuance.

06

ACT SECTIONS 4-8 AND RULES

STATUTORY PROCESS TREE

- committee and texts
- judgments, rules and laying

s.4 statutory committee -> review Hindi progress -> President

directions cannot conflict with s.3

|

s.5 authorised Hindi texts of specified Central material

s.6 authorised Hindi State Act/Ordinance + Art. 348(3) English text

s.7 HC judgment/decreed/order route + authorised English translation

s.8 Central rules + Gazette + 30-day parliamentary laying

|

1976 RULES

Regions A/B/C -> sender-recipient routing

Rule 5 Hindi reply | Rule 6 bilingual documents

Rules 7-10 employee use/knowledge | Rules 11-12 materials/compliance.

07

STATE LANGUAGE AND COMMUNICATION TREE

FEDERAL BRANCH TREE

- State choice and communication
- minority-language recognition

ARTICLE 345

State Legislature -> one or more languages in use OR Hindi

-> all or specified official purposes

-> English continues until State law changes it

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ARTICLE 346

Union-authorised language -> State-State / State-Union communication

two or more States may agree on Hindi

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ARTICLE 347

demand -> President satisfied of substantial proportion

-> recognition for State/part/purpose

CASE

U.P. Hindi Sahitya (2014): adopting Hindi does not exhaust Art. 345 power.

08

COURTS AND AUTHORITATIVE-TEXT GATES

AUTHORITY GATEWAY

- proceedings route
- judgment and text routes

ARTICLE 348(1)

SC + HC proceedings -> English until Parliament

otherwise provides

specified authoritative legal texts -> English

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ARTICLE 348(2)

Governor + previous President consent ->

Hindi/State language in HC proceedings

PROVISO -> not judgment, decree or order

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SECTION 7

non-English HC judgment/decreed/order in addition to English

+ High Court-authorised English translation

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ART. 348(3) / ss.5-6 / 1973 Act

specified authoritative translation routes.

LIMIT

An ordinary or machine translation is not automatically authoritative.

09

LEGISLATURE, TRANSITION AND GRIEVANCE ACCESS

LEGISLATIVE-ACCESS SEQUENCE

- time-bound procedure and debate
- grievance representation

ARTICLE 349

first fifteen years only -> prior President sanction for specified Art. 348 bills

after considering Art. 344 materials

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ARTICLE 120

Parliament business -> Hindi or English; mother-tongue permission

section 3(1)(b) -> continued English

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ARTICLE 210

State legislature -> State official language(s), Hindi or English

+ mother-tongue permission; authoritative text still follows Art. 348

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ARTICLE 350

every person -> grievance representation -> language used in Union/State.

10

MINORITY SAFEGUARDS AND CASE DOCTRINE

SAFEGUARD MATRIX

- facilities and reporting
- rights and choice
- proposition-controlled cases

ARTICLE 350A

State/local authority -> endeavour -> adequate mother-tongue facilities

-> primary stage -> linguistic-minority children

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ARTICLE 350B

President-appointed Special Officer ->

investigate safeguards -> report

-> Parliament + concerned States

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RIGHTS LINK, BOUNDED

Art. 29 conservation/admission | Art. 30 minority institutions

Art. 14 non-arbitrariness | Art. 19(1)(a) protected choice in context

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CASES

Gujarat University (1963) competence | T.M.A.

Pai (2002) minority framework

Associated Management (2014) medium choice; Art. 350A not compulsion.

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HINDI DEVELOPMENT, SCHEDULE AND POLICY DEBATE

POLICY COMPARISON

- Hindi development and scheduled recognition
- education policy and federal debate

ARTICLE 351

promote Hindi -> medium for composite culture

-> assimilate Hindustani + Eighth-Schedule forms without harming genius

-> vocabulary primarily Sanskrit, secondarily other languages

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EIGHTH SCHEDULE

14 original -> 21st Sindhi -> 71st K-M-N -> 92nd B-D-M-S -> 96th Odia name

CURRENT TOTAL 22 | Art. 344 representation + Art. 351 enrichment

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THREE-LANGUAGE FORMULA

education policy, not constitutional command

|

DEBATE

promotion / capability <--- federal choice

----> imposition / unequal burden.

12

REFORM, PYQ AND ANSWER SYNTHESIS

ANSWER SYNTHESIS

- access problem and reform process
- PYQ route and qualified conclusion

ACCESS PROBLEM

English barrier | translation delay | digital divide | minority-facility gap

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RESPONSE

multilingual intake -> trained interpretation ->

machine assistance

-> human legal review -> authority label ->

version control -> correction route

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VERIFIED PYQ

2024 Q72 -> 71st Amendment = Konkani + Manipuri + Nepali

|

MAINS ANSWER SPINE

distinction -> history -> Arts. 343-351 ->

1963/1967 settlement

-> State/court/minority boundaries ->

Schedule/policy -> tensions -> reform

|

QUALIFIED CONCLUSION

Promote language through capacity and consent; preserve exact legal routes; authoritative texts, equal access and India's multilingual federal compact.